

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainant

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

RESPONDENT’S OPPOSITION TO COMPLAINANT’S COMBINED MOTION FOR LEAVE TO EXCEED PAGE LIMIT; MOTION FOR RECONSIDERATION OF THE JULY 27, 2026 ORDER; AND, IN THE ALTERNATIVE, MOTION FOR LEAVE TO FILE AN INTERLOCUTORY APPEAL AND INTERLOCUTORY APPEAL PURSUANT TO 46 C.F.R. § 502.221

Respondent Top Shipping Systems, Corp. (“TSS” or “Respondent”), appearing pro se, respectfully opposes Complainant FormuKleen, Inc.’s (“Complainant”) Combined Motion for Leave to Exceed Page Limit, Motion for Reconsideration of the July 27, 2026 Order, and Alternative Motion for Leave to File an Interlocutory Appeal and Interlocutory Appeal.

For the reasons below, the requested relief should be denied.

INTRODUCTION

Complainant’s filing largely seeks to relitigate a discovery dispute Your Honor already decided.

After considering the developed record, Your Honor expressly found:

“Complainant has not met its burden of showing that Respondent’s productions were incomplete.” *July 27 Order at 6.*

Your Honor further found that, even if responsive documents had not been produced, it was unclear that they would materially advance the matter for Complainant. *July 27 Order at 6.* Your Honor then denied the renewed enforcement motion and directed briefing to proceed. *July 27 Order at 6.*

That determination should bring the discovery enforcement dispute to a close.

Complainant’s disagreement with Your Honor’s interpretation of testimony, assessment of Respondent’s searches, and evaluation of the evidence does not provide a basis to relitigate the same issues through reconsideration or interlocutory review.

Respondent respectfully submits that the continued effort to resurrect substantially the same discovery controversy has become procedurally harassing and unnecessarily burdensome to Respondent and the Commission.

The July 27 Order should stand, and this matter should proceed to the merits.

I. COMPLAINANT HAS NOT IDENTIFIED A BASIS TO DISTURB THE JULY 27 ORDER

Your Honor considered the developed discovery record and concluded that Complainant failed to meet its burden of showing that Respondent's productions were incomplete. *July 27 Order at 6*. Complainant's present motion does not identify a material fact Your Honor overlooked. Instead, it largely asks Your Honor to reconsider the weight and meaning of evidence already presented, including Del Monte's testimony, the Villena Declaration, Respondent's searches, and the scope of RFP Nos. 4 and 7.

Reconsideration should not provide a second opportunity to obtain a different result from substantially the same evidentiary record.

II. THE CERTIFIED VILLENA TRANSCRIPT DOES NOT CHANGE THE RESULT

The certified Villena transcript does not establish that Respondent failed to conduct the searches at issue. Complainant attempts to create a contradiction between Villena's description of his participation in the searches and Del Monte's testimony concerning whether his records were searched. But an alleged inconsistency between witnesses does not establish incomplete production. At most, Complainant presents another interpretation of the evidence and asks Your Honor to draw a different inference.

The fact that the transcript is now certified does not itself transform the testimony into a new underlying event or establish that Respondent's production was incomplete. Certification memorializes the testimony given. Complainant still must demonstrate why that testimony establishes a basis to disturb Your Honor's ruling. The alleged inconsistency identified by Complainant does not do so.

That is insufficient to reopen the enforcement dispute.

III. COMPLAINANT HAS NOT ESTABLISHED THAT RESPONDENT'S PRODUCTION WAS INCOMPLETE

Complainant continues to argue that Respondent should have conducted additional or different searches. However, suggesting additional search terms or methods does not establish that Respondent failed to produce responsive documents. The issue is whether Complainant proved that Respondent's production was incomplete. Your Honor already found that it did not. *July 27 Order at 6*. Complainant's disagreement with how Respondent conducted its searches does not establish that Respondent's production was incomplete.

IV. COMPLAINANT CANNOT USE DISCOVERY SANCTIONS TO OBTAIN A MERITS DETERMINATION

Complainant's request for a merits determinative sanction exposes the fundamental problem with its motion. Having failed to establish incomplete production, Complainant nevertheless seeks to convert the same discovery dispute into a conclusive finding concerning Respondent's alleged assumption of transportation responsibility.

Such relief would not remedy an established discovery violation. It would decide a central merits issue based upon a discovery violation Complainant has not proven.

The request should be denied.

V. THE CONTINUED RELITIGATION HAS BECOME PROCEDURALLY HARASSING

Complainant has already pursued enforcement, conducted additional discovery and depositions, supplemented its evidentiary record, and obtained a ruling from Your Honor.

Respondent recognizes Complainant's right to seek relief available under the Commission's Rules. But those procedures should not become vehicles for repeatedly relitigating substantially the same discovery controversy until Complainant obtains the result it seeks. The continued motion practice imposes a substantial burden upon Respondent, which must repeatedly expend time and resources answering overlapping allegations, and upon the Commission, which is repeatedly asked to revisit a discovery dispute that has already been adjudicated.

Respondent respectfully submits that continued procedural escalation should not substitute for advancing this matter to a merits determination.

VI. INTERLOCUTORY REVIEW IS NOT WARRANTED

Complainant's proposed appeal principally seeks immediate review of factual and evidentiary determinations concerning searches, testimony, production, and allegedly missing documents. Those disputes do not warrant interrupting the merits proceedings for another round of litigation concerning the same discovery record.

Your Honor expressly directed merits briefing to proceed. *July 27 Order at 6.*

Complainant has not shown why immediate appellate intervention is necessary rather than review, if appropriate, after a final decision. The fact that Complainant disagrees with an interlocutory discovery ruling does not, standing alone, justify interrupting the merits proceedings. The proceeding should move forward.

CONCLUSION

Complainant has not established a sufficient basis to disturb Your Honor's July 27, 2026 Order. The present motion largely seeks to reargue evidentiary and discovery issues already considered and decided. The certified Villena transcript does not establish a basis to reopen the enforcement dispute, and Complainant has not established that Respondent's production was incomplete or that extraordinary discovery sanctions are warranted.

Nor has Complainant demonstrated a sufficient basis to interrupt merits proceedings for interlocutory review.

Continued relitigation of substantially the same discovery controversy has become procedurally harassing and unnecessarily burdensome to Respondent and the Commission. This matter should now proceed to the merits consistent with Your Honor's July 27 Order.

Accordingly, Respondent respectfully requests that Your Honor:

1. **DENY** Complainant's request for leave to exceed the page limit or, alternatively, afford Respondent a commensurate page allowance;
2. **DENY** Complainant's Motion for Reconsideration of the July 27, 2026 Order;
3. **DENY** Complainant's requested discovery sanctions and further enforcement relief;
4. **DENY** Complainant's Motion for Leave to File an Interlocutory Appeal;
5. **DENY** the relief requested in Complainant's proposed Interlocutory Appeal; and
6. Direct that this matter proceed to merits briefing consistent with Your Honor's July 27 Order.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

Ricky Villena
Vice President, pro se

CERTIFICATE OF SERVICE

I hereby certify that on August 17th, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se